

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kenneth Shelton	Team: Squad #04	CCRB Case #: 201810462	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 12/16/2018 2:07 PM	Location of Incident: Inside of § 87(2)(b)	18 Mo. SOL 1/31/2021	Precinct: 105
Date/Time CV Reported Sun, 12/16/2018 8:31 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 12/16/2018 8:31 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Adriano Deleon	02580	940069	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Daniel Fink	24906	962407	105 PCT
2. POM Yodaryllyn Moronta	01268	949368	105 PCT
3. POM Matthew Montano	06244	963658	105 PCT
4. POM Christophe Makastchian	08386	960852	105 PCT
5. POF Kaitlyn Antonellis	10582	955719	105 PCT
6. POM Ryan Devaney	18997	958497	105 PCT
7. POM Christophe Aylward	09539	938008	105 PCT
8. POM Brendan Mcnamara	1513	957842	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Adriano Deleon	Force: Sergeant Adriano Deleon used physical force against § 87(2)(b)	A . Exonerated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On December 16, 2018, § 87(2)(b) called the CCRB and filed this complaint via the Call Processing System.

On December 16, 2018, at approximately 2:07 p.m., Sgt. Adriano Deleon, PO Daniel Fink, PO Yodaryl Moronta, PO Brendan Mcnamara, PO Christophe Aylward, PO Ryan Devaney, PO Kaitlyn Antonellis, PO Christophe Makastchian, PO Matthew Montano, PO Yodaryl Moronta, all from the 105th precinct, responded to a call regarding a forced entry and burglary at § 87(2)(b) in Queens. Sgt. Deleon grabbed § 87(2)(b) pushed him against a kitchen counter, handcuffed him, and allegedly pushed him into a nearby chair (**Allegation A: Force, Exonerated**). § 87(2)(b)

§ 87(2)(b) was not arrested or issued a summons.

On January 23, 2019, BWC videos of this incident were obtained. The full videos are located in and can be viewed from Investigative Actions #34-42 (BR 04-06).

Findings and Recommendations

Allegation (A) Force: Sergeant Adriano Deleon used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) a home inspector, visited § 87(2)(b) in Queens to conduct a home inspection for a client who was going to purchase a home. After a conversation with the home realtor, identified by the investigation as § 87(2)(b) § 87(2)(b) called 911 and reported a forced entry and burglary. Sgt. Deleon and officers responded to the location and § 87(2)(b) identified § 87(2)(b) as the possible perpetrator. Sgt. Deleon immediately placed § 87(2)(b) in handcuffs and escorted him to a nearby chair. Sgt. Deleon spoke with § 87(2)(b) and § 87(2)(b) was later released. § 87(2)(b) said (BR 02, BR 17) that after § 87(2)(b) called 911, four officers entered through the side door and four officers entered through the front door. § 87(2)(b) stated, "That's him, that's him," referring to § 87(2)(b). Officers grabbed § 87(2)(b) by different parts of his body, including his shoulder, neck, waist. § 87(2)(b) could not describe which officer grabbed each body part. § 87(2)(b) "wiggled" his body, but could not describe any specific movement he made further. The front of § 87(2)(b)'s waist and his stomach made contact with the kitchen counter. § 87(2)(b) was pushed over by his shoulders and his left shoulder was "jerked," by being abruptly moved from side to side. § 87(2)(b) did not know which officer touched his shoulders. Sgt. Deleon ordered an officer to handcuff § 87(2)(b). § 87(2)(b) did not see who handcuffed him. An officer, § 87(2)(b) did not remember which one, then pushed § 87(2)(b)'s shoulders down and sat § 87(2)(b) into a nearby chair. Approximately 15 to 20 minutes later, Sgt. Deleon returned, ordered an officer to remove the handcuffs from § 87(2)(b) and told § 87(2)(b) to leave. § 87(2)(b) left. § 87(2)(b) stated that he sustained two tears in his left rotator cuff of his left shoulder, a traumatized lumbar spine injury, an injury to his left knee from being forced against the kitchen counter.

§ 87(2)(a) PHL § 18(6)

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Sgt. Deleon said (BR 03) that he and PO Montana entered the location and § 87(2)(b) pointed to § 87(2)(b) who was in the kitchen, and stated that he was burglarizing her home. Sgt. Deleon approached § 87(2)(b) § 87(2)(b) was combative by cursing multiple times while throwing his hands up in the air in front of him, and throwing his cell phone against the wall. Sgt. Deleon handcuffed § 87(2)(b) but he did not remember who placed § 87(2)(b) § 87(2)(b)'s hands behind his back. § 87(2)(b) § 87(2)(b) complied after flailing his arms. Sgt. Deleon denied that force was used to overcome this "brief" moment of resistance. § 87(2)(b) § 87(2)(b) was placed in handcuffs for the officers' safety, given the nature of the call and because he was identified as the perpetrator. Sgt. Deleon did not remember if § 87(2)(b) § 87(2)(b) made contact with the kitchen counter. Sgt. Deleon denied pushing § 87(2)(b) § 87(2)(b) against the kitchen counter or seeing any officer doing so. Sgt. Deleon then escorted § 87(2)(b) § 87(2)(b) to a nearby chair. Sgt. Deleon denied pushing § 87(2)(b) § 87(2)(b) into the chair, or seeing any officer do so.

PO McNamara's body worn-camera footage, located in IA #38 and at 14:13:45, shows Sgt. Deleon handcuffing § 87(2)(b) § 87(2)(b). It depicts the front of § 87(2)(b) § 87(2)(b)'s waist making contact with the kitchen counter. No other part of his body makes contact with the kitchen counter.

PO Fink's body worn-camera footage, located in IA #40 and at 14:13:54, shows Sgt. Deleon seating § 87(2)(b) § 87(2)(b) in a chair and making contact with § 87(2)(b) § 87(2)(b)'s shirt with his right hand.

The EVENT (BR 09) notes that § 87(2)(b) § 87(2)(b) called 911 to report a burglary in-progress and provided a description of the perpetrator. The description noted that the perpetrator was a 50-year-old white male wearing a dark-blue sweatshirt and jean shorts.

The stop report (BR 07), prepared by PO Fink, states that officers responded to a burglary call and that the home owner pointed at § 87(2)(b) § 87(2)(b) as the perpetrator. § 87(2)(b) § 87(2)(b) became combative toward police, causing him to be put into handcuffs for the officers' safety. It also notes that § 87(2)(b) § 87(2)(b) was identified as the home inspector and was released.

The Threat, Resistance, and Injury report (BR 08), prepared by Sgt. Marciante, notes that § 87(2)(b) § 87(2)(b) called IAB hours after the incident and alleged back pain from being handcuffed.

Patrol Guide Procedure 221-02 states that a member of service may apply no more than reasonable force necessary to gain control of an uncooperative subject, and utilize de-escalation techniques to stabilize the situation (BR 12).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that
Allegation A be closed as **Exonerated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 01).
- Sgt. Adriano Deleon has been a member of service for 13 years and has been a subject in nine CCRB complaints and 19 allegations, none of which were substantiated. § 87(2)(g)

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On May 12, 2019, a FOIL request was submitted to the New York City Office of the Comptroller and will be added to the case file upon receipt.

Squad No.: _____4_____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date